IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Application for Orders in the nature of Writs of Certiorari, Prohibition and Mandamus under Article 140 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

1. Kothalawalage Sunil Shirani Kothalawala,
   No 33/2, West Tower,
   One Galle Face Residencies,
   Colombo.

2. Paul Topping,
   No 33/2, West Tower,
   One Galle Face Residencies,
   Colombo.

3. Mohammed Abuthahir Jasmin Thahir,
   Musalpitiya, Palliwasalthurai.

CA (Writ) App. No. 185/2024

PETITIONERS

Vs.

1. Indika Jayasinghe,
   Divisional Secretary,
   Divisional Secretariat, Kalpitiya.

1A. Mr D.A.P Danansooriya,
   Divisional Secretary,
   Divisional Secretariat, Kalpitiya.

2. Mr.F. Z Rizona,
   Grama Niladhari-628,
   Grama Niladhari Office,
   Musalpitiya, Kalpitiya.

3. R.M.N Premasiri,
   Provincial Land Commissioner
   North Western Province,
   Provincial Land Commissioner
   Department-North-Western
   Province,
   PO Box-46, 3rd Floor, Provincial
   Council Complex, Kurunegala.

4. H.M.S.P Herath
   District Secretary Puttlam,
   District Secretariat of Puttlam,
   Puttlam.

5. Chinthaka Mayadunna,
   Member of Parliament,
   No 44, D.M. Dassanayakapura,
   Puttlam Road, Anamaduwa.

6. Girimadhura Anura Mendis,
   Ilanthadiya, Norochcholai.

7. M. N. M. L. Ali,
   Ammathottam, Palliwasalthurai.

8. W. Shantha Jude,
   Ammathottam, Palliwasalthurai.

RESPONDENTS

Before: Dr. D. F. H. Gunawardhana, J.

Counsel:

Jeewantha Jayathilake with Shantha Jayawardena, Ralitha Amarasena and Hirannya Damunupola instructed by Sanjeewa Kaluarachchi for the Petitioner.

Nayomi Kahawita, S.S.C., for the Respondents.

Argument on: 07.05.2026

Delivered on: 30.10.2026

Dr. D. F. H. Gunawardhana, J.

Judgement

Introduction

The Petitioners challenge two quit notices issued to them by the 1st Respondent on basis that the land in suit is State land. The Petitioners so challenge the said two quit notices on the basis that the land in suit is private land.

After issuance of formal notice, the Respondents have filed their Objections, and thereafter, this was argued before me on 07.05.2026; hence, this judgement.

Factual matrix

The 1st Petitioner claims that she is the owner of the land in suit, which is in extent of Forty-Three Acres One Rood and Ten Perches, as depicted in the plan marked as **P1**. The said land is an amalgamated land of several parcels of land so depicted in the plans marked as **P2** and **P3**.

The 1st Petitioner asserts that she purchased this property from the predecessor in title under and by virtue of the Deed marked as **P10**, attested in 2008. In addition to that, she has annexed certain title deeds marked as **P5** to **P9**, to establish that her predecessors in title obtained such title based on those deeds. Furthermore, she claims that after she had become the owner, she has paid acreage taxes, which were accepted by the relevant Pradeshiya Sabha; she also annexes the Street Line and non-vesting Certificate to the Petition, marked as **P10(b)**.

Her predecessors in title had obtained permission from the Provincial Fisheries Ministry and various other authorities to carry on the business of a prawn culture project in the land in suit, on several occasions; to establish the same, she has annexed such documents marked as **P11** to **P21**. Thus, the 1st Petitioner claims that this is a freeholding land, and accordingly, the issuance

of a quit notice in respect of the said land was instigated by the then-Member of Parliament of the area, whose photograph is marked as **P29(a)** annexed to the Petition to indicate that he and some of his supporters had gathered on the said land on the basis that it belongs to the State, when it is in fact a private land. Therefore, the Petitioners have moved the authorities to take legal actions against the said people, which resulted in a 66 Application filed in the Magistrate's Court of Puttalam.

Accordingly, the Petitioners seek *inter alia* the following relief by way of this Application;

> *(c) Grant and issue an order in the nature of Writ of Certiorari quashing the Quit Notice marked P34;*
>
> *(d) Grant and issue an order in the nature of Writ of Certiorari quashing the Quit Notice marked P35;*
>
> *(e) Grant and issue an order in the nature of Writ of Certiorari quashing the proceedings, including the orders, in the Magistrate's Court Case, if any, instituted under State Lands (Recovery of Possession) Act No. 07 of 1979 (as amended) in Magistrate's Court pursuant to the Quit Notice marked P34;*
>
> *(f) Grant and issue an order in the nature of Writ of Certiorari quashing the proceedings including the orders, in the Magistrate's Court Case, if any, instituted under State Lands (Recovery of Possession) Act No. 07 of 1979 (as amended) in Magistrate's Court pursuant to the Quit Notice marked P35;*
>
> *(g) Grant and issue an order in the nature of Writ of Certiorari quashing any order/decision/declaration (if any) made under the Land Settlement Ordinance or the Land Acquisition Act or Title Registration Act any other Statute, vesting the 1st Petitioner's land in the State;*

(h) Grant and issue an order in the nature of Writ of Prohibition prohibiting the 1st to 4th Respondents and/or anyone or more of them and/or added or substitute Respondents, from taking steps under State Lands (Recovery of Possession) Act No. 07 of 1979 (as amended) in respect of Lot 'X' in Plan No. 1051A (marked P1) dated 10.07.2008;

By way of Objections, the 1st to 4th Respondents have moved for the dismissal of this Application. It is their position that the land in question had been identified as State land, and accordingly, at the request of the Divisional Secretary, the said land had been identified as State land by the Survey General; the relevant plans are marked as **1R3(a)** and **1R7**. The requests made by some authorities are marked as **1R2** and **1R6**, to establish that the land in suit is State land.

Title to the land in dispute

The Petitioners claim that the land in dispute, which is in extent of 43 Acres 01 Rood and 10 Perches, as depicted in the Plan **P1** annexed to the Petition, is owned by the 1st Petitioner (a dual citizen) whilst the 2nd Petitioner is her husband (a British citizen). They both possess the land in suit through the 3rd Petitioner, who is the caretaker of the said property.

Though the Petitioners claim that the 1st Petitioner owns the land in suit by virtue of the Deeds marked as **P5** to **P9**, she appears to have purchased the property by virtue of Deed **P10** and dated 23.07.2008. According to the Schedule of **P10**, the 1st Petitioner has obtained her title for a land in extent of 43 Acres 01 Rood and 10 Perches, which is the land depicted in the Plan marked as **P1**.

However, though the 1st Petitioner claims that the said land is an amalgamation of several parcels of land, on a perusal of the other deeds marked as **P5** to **P9**, no connection can be seen and how the parcels of land have been amalgamated cannot be seen. Nevertheless, the 1st Petitioner claims that the Deeds marked as **P5** to **P9** are the title deeds of her predecessors in

title. However, it appears that there is no chain of title commencing from one particular point of time, or how these lands have been amalgamated, except for the Deed marked as **P10**, by which the 1st Petitioner became the owner of the said 43 Acres 01 Rood and 10 Perches in 2008.

If at all, it should be presumed that the land came into existence in 2008 as depicted in **P1**, which is dated 10.07.2008. Prior to this, the land in suit must have been, if at all, existed as several lands, which is also borne out by the fact what is borne out by the documents marked as **P2** and **P3** are in relation to different lands which later appear to have been amalgamated by **P1**; the documents marked as **P2** and **P3** are dated 01.07.2008, which means that within the span of about nine days, the lands have been amalgamated for the land depicted in **P1** to come into existence. A few days thereafter only has the Deed marked as **P10** has been executed, dated 23.07.2008.

Therefore, it appears that the 1st Petitioner's title should commence from those title deeds and title plans, and beyond that, the 1st Petitioner has not placed before this Court what sort of title she has got. In fact, on a perusal of the other deeds marked and submitted to this Court as **P5** to **P9**, it appears that different people had claimed title (who, as the Petitioners claim were the predecessors in title); however, their title had never gone beyond those title deeds, while it appears that some of them have also claimed title by way of deed of declarations as well. Therefore, in any case, this Court cannot go into the matters relating to title as such; if at all, if the Petitioners have title and have acquired the paper title or prescriptive title, even against the State, they should have had a properly formulated and constituted case filed before the relevant forum and have themselves declared as the true owners against anybody, including the Respondents.

In support of my view, I rely upon the dictum of His Lordship Justice Ranasinghe in the case of *Thajudeen v. Sri Lanka Tea Board and Another*,[1] where it was held as thus;

> *All such disputed matters of fact must be resolved before a mandatory order, such as is claimed by the Petitioner in these proceedings, goes out from this Court. The issuance of such an order carries with it the implication that this Court is satisfied that the said amount is in fact due to the Petitioner and that there is no question about the basic primary questions of fact upon which the Petitioner's claim is founded When, however, such questions of fact are in dispute they can and must only be settled by a regular action between the disputants before the appropriate Court of First Instance. Such questions, the decision of which calls for the leading of evidence, both oral and documentary and the cross-examination of witnesses are all questions which can be best decided by way of regular procedure falling within the ordinary jurisdiction of the Courts of First Instance* (at page 474).

Dispute arose in 2015

The second matter that should be taken into consideration is that as borne out by the document marked as **1R1** to **1R3(b)**, there had been certain disputes with regard to the clearance of the jungle area and cutting down of trees in the area close to the Uslantivu Forest reserve. As such, in August 2015 by **1R1**, the Grama Niladhari of the area has reported the matter, and the person responsible for cutting down the said trees is also mentioned in **1R2** (dated 20.11.2015), as A.M. Nawas, who is supposed to be one of the predecessors in title of the 1st Petitioner. Thereafter, the 1st Respondent had requested the Surveyor Superintendent of Puttalam to survey the land to identify the State lands as the said Nawas had felled the trees standing on State land; the said survey plan is marked as **1R3(a)** annexed to the Objections.

[1] [1981] 2 Sri L.R. 471.

These documents marked as **1R1** to **1R3(b)** clearly indicate that the dispute, if any, on whether the land is claimed by the Petitioners or is supposed to be State land, arose in 2015. Thus, the Petitioners should have immediately gone to the relevant District Court and attempted to resolve the matter, which they have failed to do. They waited until the 1st Respondent had obtained the Government Survey's Plan marked as **1R7** and formed his opinion in terms of Section 3 of the State Lands (Recovery of Possession) Act, No. 07 of 1979. Once the 1st Respondent had formed his opinion, it is his duty under the said Act to recover the same from an unlawful possession, and accordingly, he has taken the correct steps as it appears in this case.

Therefore, if at all, when the dispute arose between the parties in 2015, the Petitioner should have gone before the District Court and have their land declared as belonging to them, which they have failed to do. Though the Petitioners claim that they are possessing the land through the 3rd Petitioner, who is the caretaker, although they may be far away (one in Colombo and the other in England), they have constructive possession of the land in suit. In such a scenario, it is presumed that they are aware of what is happening *in situ*. As such, they cannot deny the fact that behind their backs, without notice to them, the Respondents had surreptitiously surveyed and prepared the plan **1R7**. As such, it is my view that if they had any claim, they should have gone to the District Court.

Accordingly, it is my view that no writ lies based on the documents placed before this Court by the Petitioners themselves.

Conclusion

As such, I dismiss this Application, without costs.

JUDGE OF THE COURT OF APPEAL